

THE DESIGNS ACT, 2000 (ACT NO. 16 OF 2000)

CHAPTER I & II: PRELIMINARY & REGISTRATION OF DESIGNS

Section 2(d): "design" means only the features of shape, configuration, pattern, ornament or composition of lines or colours applied to any article whether in two dimensional or three dimensional or in both forms, by any industrial process or means, which in the finished article appeal to and are judged solely by the eye; but does not include any mode or principle of construction or mechanical device, and does not include trade mark or copyright.

Section 4: Prohibition of registration of certain designs:

A design which is not new or original, has been published in India or abroad prior to filing, or is not significantly distinguishable from known designs shall not be registered.

Section 11: Copyright in registered designs:

10 years from registration date, extendable by 5 years (maximum 15 years protection).

Relevance to Ayurveda Startups: Protects novel applicator shapes, ergonomic churners, customized herbal inhalers, dispensers, and distinctive packaging geometries.